Agenda Summary Mir

(/OnBaseAgendaOnline/Docum et_1_13_2026_1_00_00_PM.pdf?documentType=5&meetingId=

Switch to Accessible View

Approved at t

MINUTES OF A CITY COUNCIL MEETING

January 13, 2026

Closed Session

1:00 PM

Mayor Keeley opened the City Council Closed Session at 1:01 p.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, City Attorney C. Bronson, Director of Finance E. Cabell, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Swearing in of City Attorney Cassie Bronson

Statements of Disqualification – Councilmember Brunner announced she will be recusing herself from items 2.2 and 2.3 as they relate to her employment.

Public Comment on Closed Session Items

Mayor Keeley opened the public comment period at 1:10 p.m. The following people spoke:

James Ewing Whitman

Jeffrey Paine spoke regarding item 1.1

Mayor Keeley closed the public comment period at 1:14 p.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Conference With Legal Counsel – Liability Claims (Government Code §54956.95)

1) Claimant: Jeffrey Marshall Paine
2) Claimant: Ann Sisco
3) Claimant: Curron Michael-Edward Clark
4) Claimant: Curron Michael-Edward Clark
5) Claimant: Curron Michael-Edward Clark
6) Claimant: Curron Michael-Edward Clark

Claims against the City of Santa Cruz

Council received a status report, took up under agenda item 19, and no reportable action was taken.

2. Real Property Negotiations (Government Code §54956.8)

1) Property: 1305 E. Cliff Drive
APN: 010-282-01
Owner: City of Santa Cruz
City Negotiators: Tony Elliot
Negotiating Parties: City of Santa Cruz and Felicia Van Stolk
Under Negotiation: Price, Terms of payment, or both

2) Property: 1330 and 1344 Pacific Avenue
APN: 005-081-35 and 005-081-37
Owner: Palomar Associates
City Negotiator: Bonnie Lipscomb
Negotiating Parties: City of Santa Cruz and Palomar Associates
Under Negotiation: Price, Terms of payment, or both

3) Property: 121 Soquel Avenue
APN: 005-081-51 (Portion)
Owner: Oswald, LLC dba Oswald
City Negotiator: Bonnie Lipscomb
Negotiating Parties: City of Santa Cruz and Damani Thomas
Under Negotiation: Price, Terms of payment, or both

Item 2.1 was not discussed. Council received a status report from the City Negotiator for the remaining properties, and no reportable action was taken.

Closed Session (continued)

3. Conference with Legal Counsel - Existing Litigation (Government Code §54956.9(d)(1))

Townsend, Dominique v. City of Santa Cruz, et al.
(Santa Cruz County Superior Court Case No. 23CV02872)

Council received a status report, and no reportable action was taken.

4. Conference with Labor Negotiators (Government Code §54957.6)

   Fire Management
   Police Officers Association
   Supervisors, OE3

   City Negotiator - Sara De Leon

Council received a status report from the City Negotiator, and no reportable action was taken.

5. Public Employee Performance Evaluation/Conference with Labor Negotiators (Government Code §54957, §54957.6)

   Unrepresented employee: City Manager

   Agency designated representative: City Attorney

Council received a status report, and no reportable action was taken.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
January 13, 2026

2:30 PM

Call to Order – Mayor Keeley called the meeting to order at 2:31 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, City Attorney C. Bronson, Deputy City Manager/Director of Economic Development and Housing B. Lipscomb, Director of Finance E. Cabell, Chief of Fire R. Oatey, Chief People Officer S. De Leon, Director of Information Technology K. Morgan, Director of Parks and Recreation T. Elliot (via Zoom), Director of Planning and Community Development L. Butler, Chief of Police B. Escalante, Director of Public Works N. Nguyen, Associate Planner II J. Kidson, Sustainability and Resiliency Officer T. Wise-West, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Oral Communications

At 2:31 p.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

Unidentified person spoke regarding the previous meeting and stated the meeting rules were not enforced consistently, and freedom of speech.

James Ewing-Whitman spoke regarding his employment history, a painful surgery he had, and circulation issues he's experiencing.

Oral Communications (continued)

Becky Steinbrunner spoke regarding the proclamation for Human Trafficking Awareness and Prevention Month, and the Civil Grand Jury report on human trafficking.

Elaine Saulter spoke regarding the proclamation for Human Trafficking Awareness and Prevention Month, and the Arukah Project.

Caitlin spoke regarding the acoustic conflict of zoning high-density residential units within the acoustic footprint of the Catalyst.

Unidentified person spoke regarding fire safety of lithium-ion batteries.

At 2:44 p.m. Mayor Keeley closed Oral Communications.

Presentation

6. Mayoral Proclamation Declaring January 2026 as Human Trafficking Awareness and Prevention Month

   Councilmember Golder read from a proclamation declaring January 2026 as Human Trafficking Awareness and Prevention Month. Karen Madura, Chair, and Ilene Feinman, Commissioner, Commission for the Prevention of Violence Against Women, spoke.

Presiding Officer's Announcements

Statements of Disqualification – None.

Additions and Deletions – None.

City Attorney Report on Closed Session – See pages 8133—8134 for the report.

Council Meeting Calendar

7. The City Council reviewed and did not revise the meeting calendar attached to the agenda.

Consent Agenda

Councilmember Newsome made a comment on item 17.

Councilmember Brunner made a comment on items 12, 13, 16 and 24.

Councilmember Trigueiro made a comment on item 12 stating in an abundance of caution, she would not be serving on the CORE Ad Hoc Committee, and on item 13.

Councilmember O'Hara made a comment on item 14.

Vice Mayor Kalantari-Johnson made a comment on items 13 and 14.

Mayor Keeley opened the public comment period. The following people spoke:

Unidentified person spoke regarding item 14.

James Ewing-Whitman spoke regarding items 10, 14, 15, 16, 19 and 25.

Brad Snyder spoke regarding item 11.

Mayor Keeley closed the public comment period.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember Golder, to approve the amended Consent Agenda.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

8. Resolution Extending the Emergency Declarations in Connection with the 2022/2023 Winter Storms and 2023/2024 Winter Storms (CA)

   LOCATION: Citywide

   Resolution No. NS-30,595 was adopted extending by sixty days the Local Emergency Declarations in connection with the 2022/2023 and 2023/2024 Winter Storms.

Consent Agenda (continued)

9. Resolution Extending the Emergency Declaration in Connection with the December 2024 Municipal Wharf Emergency (CA/CM)

   LOCATION: District 4

   Resolution No. NS-30,596 was adopted extending by sixty days the Local Emergency Declaration in connection with the December 2024 Municipal Wharf emergency.

10. Minutes of the December 9, 2025 City Council Meeting (CC)

LOCATION: None

Motion carried to approve as submitted.

11. Resolution Ordering an Election for Three Council Seats, Districts 4 and 6, and Mayor, for the June 2, 2026 Primary Election (CC)

LOCATION: Citywide

Resolution No. NS-30,597 was adopted ordering an election, requesting the County Elections Department to conduct the election, and requesting consolidation of the election with the June 2, 2026 Primary Election.

12. Appointment of Representatives to External Agencies, Groups, Council Committees and Task Forces (CC)

LOCATION: Citywide

Motion carried to approve Mayor Keeley's nominations as amended to external agencies, groups, and City Council committees and task forces for the 2026 calendar year.

13. Adoption of Policy Framework for the Sugar-Sweetened Beverage Tax Oversight Committee (SSBTOC) (CM/CN)

LOCATION: Citywide

Motion carried to adopt a policy framework, as described in this agenda report, establishing the Sugar-Sweetened Beverage Tax Oversight Committee (SSBTOC), consistent with Santa Cruz Municipal Code §3.38.015, to ensure community oversight, transparency, and equitable allocation of revenues generated by the Sugar-Sweetened Beverage (SSB) Tax.

Consent Agenda (continued)

14. FY25 Strategic Plan Annual Report (CM)

LOCATION: Citywide

Motion carried to approve the Fiscal Year (FY) 25 Strategic Plan Annual Report.

15. Distribution of Coast Pump Station Battery Storage Tax Credit (CM/PW/WT)

LOCATION: Citywide

Motion carried to:

- Approve the distribution of revenue from the Coast Pump Station Battery Storage federal investment tax credit; and

- Adopt Resolution No. NS-30,598 amending the revenues and expenditures in the FY 2026 Budget by $1,766,641 and $1,736,641, respectively, for the General Fund ($1,589,977), the Photovoltaic Systems Improvements project (c702602, $73,332), the Solar PV Expansion at Corp Yard project (c101901, $73,332), and the Carbon Fund ($30,000).

16. Navigation Center Funding Agreement (EDH)

LOCATION: District 5

Motion carried to:

- Reauthorize the City Manager, or designee, to execute the California Department of Health Care Services (DHCS) Behavioral Health Infrastructure Bond Program Funding Agreement (PFA) and any documents, amendments or extensions of a non-substantive nature, in a form approved by the City Attorney;

- Adopt Resolution No. NS-30,599 amending the Fiscal Year 2026 budget to appropriate $30,100,000 to grant funding and match; and

- Adopt a finding of Categorical Exemption pursuant to CEQA Guidelines Section 15332 (In-Fill Development Projects); and Statutory Exemptions pursuant to Cal. Welfare & Institutions Code §5960.3(b) and Government Code §65662 (Low Barrier Navigation Centers).

Consent Agenda (continued)

17. Palomar Inn Affordable Housing Preservation (EDH)

LOCATION: District 4

Motion carried to:

- Authorize the City Manager, or designee, to execute an affordable housing preservation loan agreement, and any related documents, amendments or extensions, in a form to be approved by the City Attorney;

- Adopt Resolution No. NS-30,600 amending the Fiscal Year 2026 budget to appropriate $1,000,000 in the Affordable Housing Trust Fund (AHTF), transferred from the Housing Successor Agency, as a loan to the Palomar Inn Project; and

- Adopt a finding of Categorical Exemption pursuant to CEQA Guideline Section 15301 (Existing Facilities).

18. Living Wage Rate Annual Prescription for Fiscal Year 2027 (FN)

LOCATION: Citywide

Resolution No. NS-30,601 was adopted upwardly indexing the prescribed minimum living wage rate by 2.7%, the amount which corresponds to San Francisco-Oakland-Hayward Area Consumer Price Index (CPI) for Urban Wage Earners and Clerical Workers, for the period ending August 31, 2025, to become effective July 1, 2026; and rescinding Resolution No. NS-30,433.

19. Liability Claims Filed Against the City of Santa Cruz (FN)

Motion carried to reject the liability claims of 1) Jeffrey Marshall Paine, 2) Ann Sisco, and 3) Curron Michael-Edward Clark, and to return as late, the claims of 4) Curron Michael-Edward Clark, 5) Curron Michael-Edward Clark, and 6) Curron Michael-Edward Clark; based on staff recommendation.

20. Outside Legal Services - Budget Adjustment (HR)

LOCATION: Citywide

Resolution No. NS-30,602 was adopted amending the Fiscal Year (FY) 2026 budget to appropriate funds in the amount of $363,394 to the Human Resources Department for outside legal services.

Consent Agenda (continued)

21. 2025-2028 City of Santa Cruz Fire Management Association Agreement for Successor Memorandum of Understanding (HR)

LOCATION: Citywide

Resolution No. NS-30,603 was adopted adopting a Total Tentative Agreement between the City of Santa Cruz and the Fire Management Association effective October 11, 2025 through July 3, 2028.

22. 2025-2028 City of Santa Cruz Supervisors Operating Engineers, Local 3 Agreement for Successor Memorandum of Understanding (HR)

LOCATION: Citywide

Resolution No. NS-30,604 was adopted approving the Total Tentative Agreement between the City of Santa Cruz and the Supervisors Operating Engineers, Local 3, dated December 6, 2025 through December 8, 2028.

23. Neary Lagoon Tule & Sediment Removal Project 2025 (m409668) - Notice of Completion (PW)

LOCATION: District 3

Motion carried to accept the work of McNabb Construction, Inc. (Lafayette, CA) as completed per plans and specifications and authorize the filing of the Notice of Completion for the Neary Lagoon Tule & Sediment Removal Project 2025 (m409668) and authorizing the Public Works Director to sign the Notice of Completion as the Owner's Authorized Agent.

Consent Agenda (continued)

24. Soquel Avenue Minor Striping Improvements 2025 (PW)

    LOCATION: Districts 1 and 2

    Motion carried to:

    - Approve the Soquel Avenue Minor Striping Improvements 2025 Plan;
    - Adopt Resolution No. NS-30,605 to approve the Soquel Avenue Minor Striping Improvements 2025 Plan pursuant to Government Code Section 830.6; and
    - Adopt a finding of Categorical Exemption under CEQA Guidelines 14 CCR section 15301(c) (existing facilities).

25. Purchase of Vac Con Vactor Truck (WT)

    LOCATION: None

    Motion carried to authorize the purchase a hydro-excavator truck from Vac-con (Green Cove Springs, FL) in the amount of $742,564.02 under the existing cooperative contract with Sourcewell.

End Consent Agenda

At this time the Mayor reordered the agenda to hear item 28.

General Business

26. Introduce for Publication an Ordinance Amending Chapter 16.02 of the Santa Cruz Municipal Code Restricting the Irrigation of Nonfunctional Turf (WT)

    LOCATION: County (Water Service Area)

Associate Planner II J. Kidson gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. There were no speakers. Mayor Keeley closed the public comment period.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember Golder, to:

- Introduce for publication Ordinance No. 2026-01 amending Chapter 16.02 of the Santa Cruz Municipal Code restricting the irrigation of nonfunctional turf; and

- Adopt a finding of categorical exemption pursuant to California Environmental Quality Act (CEQA) Guidelines Section 15307 (Actions by Regulatory Agencies for Protection of Natural Resources) and Section 15308 (Actions by Regulatory Agencies for Protection of the Environment).

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

General Business (continued)

27. Climate Action Plan 2030 - 2022-2025 Citywide Implementation Workplan Progress Report and Proposed 2026-2029 Citywide Implementation Workplan (CM)

    LOCATION: Citywide

Sustainability and Resiliency Officer T. Wise-West spoke.

Mayor Keeley opened the public comment period. The following people spoke.

Unidentified person
Gino Garcia
Unidentified person

Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Councilmember Newsome, to:

- Accept Climate Action Plan 2030 (CAP 2030) - 2022-2025 Citywide Implementation Workplan Progress Report; and

- Approve CAP 2030 – Proposed 2026-2029 Citywide Implementation Workplan.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

General Business (continued)

28. Terminate Flock Safety Automated License Plate Reader (ALPR) Contract; Cease ALPR Use; Direct Conditional Return Only if a Fully-Vetted, Values-Aligned ALPR Alternative is Identified (CN)

LOCATION: Citywide

Councilmember O'Hara spoke.

Mayor Keeley opened the public comment period. The following people spoke.

Unidentified person
Sean Dougherty
Mei
Peter Gelblum
Jill Clifton
Sergeant J. Trog
Laura Chatham
Anna
Andrew Davis
Joe Thompson
Michael Leavy
Musa
Geroge Cadman
Greg Bengston
Brett Garrett
James Ewing-Whitman
Katherine Hedges
Nyanko
Linda Marin
Unidentified person
Unidentified person
Tanya Harmony Ridino
Christine Kelsey
Gretchen Reyes
Unidentified person
Batya Kagan
Sarah
Brad Snyder
Sarah
Rachel O'Malley
Unidentified person

Mayor Keeley closed the public comment period.

General Business (continued)

28. Terminate Flock Safety Automated License Plate Reader (ALPR) Contract; Cease ALPR Use; Direct Conditional Return Only if a Fully-Vetted, Values-Aligned ALPR Alternative is Identified (CN) LOCATION: Citywide (continued)

MOTION: Councilmember O'Hara moved, seconded by Vice Mayor Kalantari-Johnson, to:

- Terminate the City's contract with, and discontinue use of, Flock Safety ALPR services effective immediately and direct the City Manager/City Attorney to provide the necessary notice; and

- Direct staff to return to City Council with a recommended approach for reinstituting ALPRs, only if and when a viable option is identified, including:

  - Recommended vendor/system that provide stronger local controls; and

  - Recommended contract and policy safeguards to ensure system transparency, protect civil liberties, and reduce cybersecurity risks, including strict controls on data access/sharing and independent auditability.

Chief of Police B. Escalante responded to Council questions.

SUBSTITUTE MOTION: Councilmember Brunner moved to direct staff to continue using Flock Safety ALPR services and renew the City's contract with Flock, subject to the following safety restrictions:

(1) Staff is directed to end all data-sharing relationships in the Flock program with all jurisdictions, except for local law enforcement agencies in Santa Cruz County and adjoining counties (Monterey County, San Benito County, Santa Clara County, and San Mateo County) who complete a City-required attestation form, requiring those agencies to:

(a) Align with the same data-sharing values as the City of Santa Cruz and only perform Flock searches for legitimate law enforcement purposes, and not for immigration or other illegitimate improper purposes;

(b) Never perform searches on behalf of any federal agency, share with, or let any federal agency or federal agent access the database; and

General Business (continued)

28. Terminate Flock Safety Automated License Plate Reader (ALPR) Contract; Cease ALPR Use; Direct Conditional Return Only if a Fully-Vetted, Values-Aligned ALPR Alternative is Identified (CN) LOCATION: Citywide (continued)

SUBSTITUTE MOTION (continued):

(c) Utilize the same drop-down menu in the Flock program which only lists crimes that are chargeable in California.

This attestation will be under penalty of perjury, and the City of Santa Cruz will immediately cease all data- sharing relationships with entities who violate the terms of the attestation.

(2) Flock's contract language is to be modified with City Attorney approved language to:

(a) more clearly prohibit Flock from ever engaging in unauthorized or potentially illegal sharing of the City's ALPR data;

(b) specify that the City will not take any upgrades automatically without agreeing individually to the changes in functionality.

(3) The City's Network Audit data will be subject to an independent quarterly review, the City's Organizational Audit data will continue to be posted with appropriate redactions to the SCPD's Flock transparency portal, and the City's Network Audit data will be posted with appropriate redactions to SCPD's City-hosted transparency portal. SCPD's ALPR policy will be updated to reflect these changes.

(4) Staff will report back to the Public Safety Committee (PSC) in approximately 6 months to obtain the PSC's recommendation as to whether any further changes to the City's ALPR program are warranted. If the PSC recommends a change, a Council meeting will be agendized for potential Council action on the PSC's recommendation.

(5) City staff, including IT, will review all internal data systems and external data contracts citywide to ensure that privacy and safety safeguards align with the same safeguards set out in this motion.

Motion failed due to a lack of a second.

City Attorney C. Bronson responded to Council questions.

General Business (continued)

28. Terminate Flock Safety Automated License Plate Reader (ALPR) Contract; Cease ALPR Use; Direct Conditional Return Only if a Fully-Vetted, Values-Aligned ALPR Alternative is Identified (CN) LOCATION: Citywide (continued)

ACTION: The original motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	Councilmember Brunner.
ABSENT:	None.
DISQUALIFIED:	None.

At this time Council heard item 26 followed by item 27.

Adjournment – Councilmember Golder moved, seconded by Brunner, to adjourn. By consensus City Council adjourned at 6:08 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

Copyright © 2015-2026 Hyland Software, Inc.